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omitted)). But *amicus*' argument does not cast any doubt on the jurisdiction of the District Court because petitioner is *the defendant* and did not invoke the Court's jurisdiction. See *Bond v. United States*, 564 U. S. 211, 217 (2011) (When the plaintiff has standing, "Article III does not restrict the opposing party's ability to object to relief being sought at its expense.").

It is true that "standing must be met by persons seeking appellate review, just as it must be met by persons appearing in courts of first instance." *Hollingsworth v. Perry*, 570 U. S. 693, 705 (2013) (internal quotation marks omitted). But petitioner's appellate standing is beyond dispute. Petitioner is compelled to comply with the civil investigative demand and to provide documents it would prefer to withhold, a concrete injury. That injury is traceable to the decision below and would be fully redressed if we were to reverse the judgment of the Court of Appeals and remand with instructions to deny the Government's petition to enforce the demand.

Without engaging with these principles, *amicus* contends that a litigant wishing to challenge an executive act on the basis of the President's removal power must show that the challenged act would not have been taken if the responsible official had been subject to the President's control. See Brief for Court-Appointed *Amicus Curiae* 21–24. Our precedents say otherwise. We have held that a litigant challenging governmental action as void on the basis of the separation of powers is not required to prove that the Government's course of conduct would have been different in a "counterfactual world" in which the Government had acted with constitutional authority. *Free Enterprise Fund*, 561 U. S., at 512, n. 12. In the specific context of the President's removal power, we have found it sufficient that the challenger "sustain[s] injury" from an executive act that allegedly exceeds the official's authority. *Bowsher v. Synar*, 478 U. S. 714, 721 (1986).

Second, *amicus* contends that the proper context for assessing the constitutionality of an officer's removal restriction is a contested removal. See Brief for Court-Appointed *Amicus Curiae* 24–27. While that is certainly one way to review a removal restriction, it is not the only way. Our precedents have long permitted private parties aggrieved by an official's exercise of executive power to challenge the official's authority to wield that power while insulated from removal by the President. See *Bowsher*, 478 U. S., at 721 (lawsuit filed by aggrieved third party in the absence of contested removal); *Free Enterprise Fund*, 561 U. S., at 487 (same); *Morrison*, 487 U. S., at 668–669 (defense to subpoena asserted by third party in the absence of contested removal). Indeed, we have expressly “reject[ed]” the “argument that consideration of the effect of a removal provision is not ‘ripe’ until that provision is actually used,” because when such a provision violates the separation of powers it inflicts a “here-and-now” injury on affected third parties that can be remedied by a court. *Bowsher*, 478 U. S., at 727, n. 5 (internal quotation marks omitted). The Court of Appeals therefore correctly entertained petitioner's constitutional defense on the merits.

Lastly, *amicus* contends that we should dismiss the case because the parties agree on the merits of the constitutional question and the case therefore lacks “adverseness.” Tr. of Oral Arg. 42–43, 45–46. That contention, however, is foreclosed by *United States v. Windsor*, 570 U. S. 744 (2013). There, we explained that a lower court order that presents real-world consequences for the Government and its adversary suffices to support Article III jurisdiction—even if “the Executive may welcome” an adverse order that “is accompanied by the constitutional ruling it wants.” *Id.*, at 758. Here, petitioner and the Government disagree about whether petitioner must comply with the civil investigative demand. The lower courts sided with the Government, and the Government has not volunteered to relinquish that vic-

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tory and withdraw the demand. To the contrary, while the Government agrees that the agency is unconstitutionally structured, it believes it may nevertheless enforce the demand on remand. See *infra*, at 232. Accordingly, our “decision will have real meaning” for the parties. *INS v. Chadha*, 462 U. S. 919, 939 (1983). And, as in *Windsor*, any prudential concerns with deciding an important legal question in this posture can be addressed by “the practice of entertaining arguments made by an *amicus* when the Solicitor General confesses error with respect to a judgment below,” which we have done. 570 U. S., at 760.

We therefore turn to the merits of petitioner’s constitutional challenge.

III

We hold that the CFPB’s leadership by a single individual removable only for inefficiency, neglect, or malfeasance violates the separation of powers.

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A

Article II provides that “[t]he executive Power shall be vested in a President,” who must “take Care that the Laws be faithfully executed.” Art. II, § 1, cl. 1; *id.*, § 3. The entire “executive Power” belongs to the President alone. But because it would be “impossib[le]” for “one man” to “perform all the great business of the State,” the Constitution assumes that lesser executive officers will “assist the supreme Magistrate in discharging the duties of his trust.” 30 Writings of George Washington 334 (J. Fitzpatrick ed. 1939).

These lesser officers must remain accountable to the President, whose authority they wield. As Madison explained, “[I]f any power whatsoever is in its nature Executive, it is the power of appointing, overseeing, and controlling those who execute the laws.” 1 Annals of Cong. 463 (1789). That power, in turn, generally includes the ability to remove executive officials, for it is “only the authority that can remove” such officials that they “must fear and, in the performance of

[their] functions, obey.” *Bowsher*, 478 U. S., at 726 (internal quotation marks omitted).

The President’s removal power has long been confirmed by history and precedent. It “was discussed extensively in Congress when the first executive departments were created” in 1789. *Free Enterprise Fund*, 561 U. S., at 492. “The view that ‘prevailed, as most consonant to the text of the Constitution’ and ‘to the requisite responsibility and harmony in the Executive Department,’ was that the executive power included a power to oversee executive officers through removal.” *Ibid.* (quoting Letter from James Madison to Thomas Jefferson (June 30, 1789), 16 Documentary History of the First Federal Congress 893 (2004)). The First Congress’s recognition of the President’s removal power in 1789 “provides contemporaneous and weighty evidence of the Constitution’s meaning,” *Bowsher*, 478 U. S., at 723 (internal quotation marks omitted), and has long been the “settled and well understood construction of the Constitution,” *Ex parte Hennen*, 13 Pet. 230, 259 (1839).

The Court recognized the President’s prerogative to remove executive officials in *Myers v. United States*, 272 U. S. 52. Chief Justice Taft, writing for the Court, conducted an exhaustive examination of the First Congress’s determination in 1789, the views of the Framers and their contemporaries, historical practice, and our precedents up until that point. He concluded that Article II “grants to the President” the “general administrative control of those executing the laws, including the power of appointment *and removal* of executive officers.” *Id.*, at 163–164 (emphasis added). Just as the President’s “selection of administrative officers is essential to the execution of the laws by him, so must be his power of removing those for whom he can not continue to be responsible.” *Id.*, at 117. “[T]o hold otherwise,” the Court reasoned, “would make it impossible for the President . . . to take care that the laws be faithfully executed.” *Id.*, at 164.

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We recently reiterated the President’s general removal power in *Free Enterprise Fund*. “Since 1789,” we recapped, “the Constitution has been understood to empower the President to keep these officers accountable—by removing them from office, if necessary.” 561 U. S., at 483. Although we had previously sustained congressional limits on that power in certain circumstances, we declined to extend those limits to “a new situation not yet encountered by the Court”—an official insulated by *two* layers of for-cause removal protection. *Id.*, at 483, 514. In the face of that novel impediment to the President’s oversight of the Executive Branch, we adhered to the general rule that the President possesses “the authority to remove those who assist him in carrying out his duties.” *Id.*, at 513–514.

Free Enterprise Fund left in place two exceptions to the President’s unrestricted removal power. First, in *Humphrey’s Executor*, decided less than a decade after *Myers*, the Court upheld a statute that protected the Commissioners of the FTC from removal except for “inefficiency, neglect of duty, or malfeasance in office.” 295 U. S., at 620 (quoting 15 U. S. C. § 41). In reaching that conclusion, the Court stressed that Congress’s ability to impose such removal restrictions “will depend upon the character of the office.” 295 U. S., at 631.

Because the Court limited its holding “to officers of the kind here under consideration,” *id.*, at 632, the contours of the *Humphrey’s Executor* exception depend upon the characteristics of the agency before the Court. Rightly or wrongly, the Court viewed the FTC (as it existed in 1935) as exercising “no part of the executive power.” *Id.*, at 628. Instead, it was “an administrative body” that performed “specified duties as a legislative or as a judicial aid.” *Ibid.* It acted “as a legislative agency” in “making investigations and reports” to Congress and “as an agency of the judiciary” in making recommendations to courts as a master in chan-

cery. *Ibid.* “To the extent that [the FTC] exercise[d] any executive *function*[,] as distinguished from executive *power* in the constitutional sense,” it did so only in the discharge of its “quasi-legislative or quasi-judicial powers.” *Ibid.* (emphasis added).²

The Court identified several organizational features that helped explain its characterization of the FTC as non-executive. Composed of five members—no more than three from the same political party—the Commission was designed to be “non-partisan” and to “act with entire impartiality.” *Id.*, at 624; see *id.*, at 619–620. The FTC’s duties were “neither political nor executive,” but instead called for “the trained judgment of a body of experts” “informed by experience.” *Id.*, at 624 (internal quotation marks omitted). And the Commissioners’ staggered, seven-year terms enabled the agency to accumulate technical expertise and avoid a “complete change” in leadership “at any one time.” *Ibid.*

In short, *Humphrey’s Executor* permitted Congress to give for-cause removal protections to a multimember body of experts, balanced along partisan lines, that performed legislative and judicial functions and was said not to exercise any executive power. Consistent with that understanding, the Court later applied “[t]he philosophy of *Humphrey’s Executor*” to uphold for-cause removal protections for the members of the War Claims Commission—a three-member “adjudicatory body” tasked with resolving claims for compensation arising from World War II. *Wiener v. United States*, 357 U. S. 349, 356 (1958).

²The Court’s conclusion that the FTC did not exercise executive power has not withstood the test of time. As we observed in *Morrison v. Olson*, 487 U. S. 654 (1988), “[I]t is hard to dispute that the powers of the FTC at the time of *Humphrey’s Executor* would at the present time be considered ‘executive,’ at least to some degree.” *Id.*, at 690, n. 28. See also *Arlington v. FCC*, 569 U. S. 290, 305, n. 4 (2013) (even though the activities of administrative agencies “take ‘legislative’ and ‘judicial’ forms,” “they are exercises of—indeed, under our constitutional structure they *must be* exercises of—the ‘executive Power’” (quoting Art. II, § 1, cl. 1)).

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While recognizing an exception for multimember bodies with “quasi-judicial” or “quasi-legislative” functions, *Humphrey’s Executor* reaffirmed the core holding of *Myers* that the President has “unrestrictable power . . . to remove purely executive officers.” 295 U. S., at 632. The Court acknowledged that between purely executive officers on the one hand, and officers that closely resembled the FTC Commissioners on the other, there existed “a field of doubt” that the Court left “for future consideration.” *Ibid.*

We have recognized a second exception for *inferior* officers in two cases, *United States v. Perkins* and *Morrison v. Olson*.³ In *Perkins*, we upheld tenure protections for a naval cadet-engineer. 116 U. S., at 485. And, in *Morrison*, we upheld a provision granting good-cause tenure protection to an independent counsel appointed to investigate and prosecute particular alleged crimes by high-ranking Government officials. 487 U. S., at 662–663, 696–697. Backing away from the reliance in *Humphrey’s Executor* on the concepts of “quasi-legislative” and “quasi-judicial” power, we viewed the ultimate question as whether a removal restriction is of “such a nature that [it] impede[s] the President’s ability to perform his constitutional duty.” 487 U. S., at 691. Although the independent counsel was a single person and performed “law enforcement functions that typically have been undertaken by officials within the Executive Branch,” we concluded that the removal protections did not unduly interfere with the functioning of the Executive Branch because

³ Article II distinguishes between two kinds of officers—principal officers (who must be appointed by the President with the advice and consent of the Senate) and inferior officers (whose appointment Congress may vest in the President, courts, or heads of Departments). §2, cl. 2. While “[o]ur cases have not set forth an exclusive criterion for distinguishing between principal and inferior officers,” we have in the past examined factors such as the nature, scope, and duration of an officer’s duties. *Edmond v. United States*, 520 U. S. 651, 661 (1997). More recently, we have focused on whether the officer’s work is “directed and supervised” by a principal officer. *Id.*, at 663.

“the independent counsel [was] an inferior officer under the Appointments Clause, with limited jurisdiction and tenure and lacking policymaking or significant administrative authority.” *Ibid.*

These two exceptions—one for multimember expert agencies that do not wield substantial executive power, and one for inferior officers with limited duties and no policymaking or administrative authority—“represent what up to now have been the outermost constitutional limits of permissible congressional restrictions on the President’s removal power.” *PHH*, 881 F. 3d, at 196 (Kavanaugh, J., dissenting) (internal quotation marks omitted).

B

Neither *Humphrey’s Executor* nor *Morrison* resolves whether the CFPB Director’s insulation from removal is constitutional. Start with *Humphrey’s Executor*. Unlike the New Deal-era FTC upheld there, the CFPB is led by a single Director who cannot be described as a “body of experts” and cannot be considered “non-partisan” in the same sense as a group of officials drawn from both sides of the aisle. 295 U.S., at 624. Moreover, while the staggered terms of the FTC Commissioners prevented complete turnovers in agency leadership and guaranteed that there would always be some Commissioners who had accrued significant expertise, the CFPB’s single-Director structure and five-year term guarantee abrupt shifts in agency leadership and with it the loss of accumulated expertise.

In addition, the CFPB Director is hardly a mere legislative or judicial aid. Instead of making reports and recommendations to Congress, as the 1935 FTC did, the Director possesses the authority to promulgate binding rules fleshing out 19 federal statutes, including a broad prohibition on unfair and deceptive practices in a major segment of the U. S. economy. And instead of submitting recommended dispositions

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to an Article III court, the Director may unilaterally issue final decisions awarding legal and equitable relief in administrative adjudications. Finally, the Director's enforcement authority includes the power to seek daunting monetary penalties against private parties on behalf of the United States in federal court—a quintessentially executive power not considered in *Humphrey's Executor*.⁴

The logic of *Morrison* also does not apply. Everyone agrees the CFPB Director is not an inferior officer, and her duties are far from limited. Unlike the independent counsel, who lacked policymaking or administrative authority, the Director has the sole responsibility to administer 19 separate consumer-protection statutes that cover everything from credit cards and car payments to mortgages and student loans. It is true that the independent counsel in *Morrison* was empowered to initiate criminal investigations and prosecutions, and in that respect wielded core executive power. But that power, while significant, was trained inward to high-ranking governmental actors identified by others, and was confined to a specified matter in which the Department of Justice had a potential conflict of interest. By contrast, the CFPB Director has the authority to bring the coercive power of the state to bear on millions of private citizens and

⁴The dissent would have us ignore the reasoning of *Humphrey's Executor* and instead apply the decision only as part of a reimagined *Humphrey's-through-Morrison* framework. See *post*, at 278, n. 7, 279–282 (KAGAN, J., concurring in judgment with respect to severability and dissenting in part) (hereinafter dissent). But we take the decision on its own terms, not through gloss added by a later Court in dicta. The dissent also criticizes us for suggesting that the 1935 FTC may have had lesser responsibilities than the present FTC. See *post*, at 286–287, n. 10. Perhaps the FTC possessed broader rulemaking, enforcement, and adjudicatory powers than the *Humphrey's* Court appreciated. Perhaps not. Either way, what matters is the set of powers the Court considered as the basis for its decision, not any latent powers that the agency may have had not alluded to by the Court.

businesses, imposing even billion-dollar penalties through administrative adjudications and civil actions.

In light of these differences, the constitutionality of the CFPB Director's insulation from removal cannot be settled by *Humphrey's Executor* or *Morrison* alone.

C

The question instead is whether to extend those precedents to the “new situation” before us, namely an independent agency led by a single Director and vested with significant executive power. *Free Enterprise Fund*, 561 U. S., at 483. We decline to do so. Such an agency has no basis in history and no place in our constitutional structure.

1

“Perhaps the most telling indication of [a] severe constitutional problem” with an executive entity “is [a] lack of historical precedent” to support it. *Id.*, at 505 (internal quotation marks omitted). An agency with a structure like that of the CFPB is almost wholly unprecedented.

After years of litigating the agency's constitutionality, the Courts of Appeals, parties, and *amici* have identified “only a handful of isolated” incidents in which Congress has provided good-cause tenure to principal officers who wield power alone rather than as members of a board or commission. *Ibid.* “[T]hese few scattered examples”—four to be exact—shed little light. *NLRB v. Noel Canning*, 573 U. S. 513, 538 (2014).

First, the CFPB's defenders point to the Comptroller of the Currency, who enjoyed removal protection for *one year* during the Civil War. That example has rightly been dismissed as an aberration. It was “adopted without discussion” during the heat of the Civil War and abandoned before it could be “tested by executive or judicial inquiry.” *Myers*, 272 U. S., at 165. (At the time, the Comptroller may also have been an inferior officer, given that he labored

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“under the general direction of the Secretary of the Treasury.” Ch. 58, 12 Stat. 665.)⁵

Second, the supporters of the CFPB point to the Office of the Special Counsel (OSC), which has been headed by a single officer since 1978.⁶ But this first enduring single-leader office, created nearly 200 years after the Constitution was ratified, drew a contemporaneous constitutional objection from the Office of Legal Counsel under President Carter and a subsequent veto on constitutional grounds by President Reagan. See Memorandum Opinion for the General Counsel, Civil Service Commission, 2 Op. OLC 120, 122 (1978); Public Papers of the Presidents, Ronald Reagan, Vol. II, Oct. 26, 1988, pp. 1391–1392 (1991).⁷ In any event, the OSC exercises only limited jurisdiction to enforce certain rules governing Federal Government employers and employees. See 5 U. S. C. § 1212. It does not bind private parties at all or wield regulatory authority comparable to the CFPB.

Third, the CFPB’s defenders note that the Social Security Administration (SSA) has been run by a single Administrator since 1994. That example, too, is comparatively recent and controversial. President Clinton questioned the constitutionality of the SSA’s new single-Director structure upon

⁵The dissent suggests that the Comptroller still enjoyed some degree of insulation after his removal protection was repealed because the President faced a new requirement to “communicate[]” his “reasons” for terminating the Comptroller to the Senate. *Post*, at 274 (quoting Act of June 3, 1864, ch. 106, § 1, 13 Stat. 100). But the President could still remove the Comptroller for any reason so long as the President was, in the dissent’s phrase, “in a firing mood.” *Post*, at 275.

⁶The OSC should not be confused with the independent counsel in *Morrison* or the special counsel recently appointed to investigate allegations related to the 2016 Presidential election. Despite sharing similar titles, those individuals have no relationship to the OSC.

⁷An Act similar to the one vetoed by President Reagan was eventually signed by President George H. W. Bush after extensive negotiations and compromises with Congress. See Public Papers of the Presidents, George H. W. Bush, Vol. I, Apr. 10, 1989, p. 391 (1990).

signing it into law. See Public Papers of the Presidents, William J. Clinton, Vol. II, Aug. 15, 1994, pp. 1471–1472 (1995) (inviting a “corrective amendment” from Congress). In addition, unlike the CFPB, the SSA lacks the authority to bring enforcement actions against private parties. Its role is largely limited to adjudicating claims for Social Security benefits.

The only remaining example is the Federal Housing Finance Agency (FHFA), created in 2008 to assume responsibility for Fannie Mae and Freddie Mac. That agency is essentially a companion of the CFPB, established in response to the same financial crisis. See Housing and Economic Recovery Act of 2008, 122 Stat. 2654. It regulates primarily Government-sponsored enterprises, not purely private actors. And its single-Director structure is a source of ongoing controversy. Indeed, it was recently held unconstitutional by the Fifth Circuit, sitting en banc. See *Collins v. Mnuchin*, 938 F.3d 553, 587–588 (2019).

With the exception of the one-year blip for the Comptroller of the Currency, these isolated examples are modern and contested. And they do not involve regulatory or enforcement authority remotely comparable to that exercised by the CFPB. The CFPB’s single-Director structure is an innovation with no foothold in history or tradition.⁸

2

In addition to being a historical anomaly, the CFPB’s single-Director configuration is incompatible with our constitutional structure. Aside from the sole exception of the

⁸The dissent categorizes the CFPB as one of many “financial regulators” that have historically enjoyed some insulation from the President. See *post*, at 271–276. But even assuming financial institutions like the Second Bank and the Federal Reserve can claim a special historical status, the CFPB is in an entirely different league. It acts as a mini legislature, prosecutor, and court, responsible for creating substantive rules for a wide swath of industries, prosecuting violations, and levying knee-buckling penalties against private citizens. See *supra*, at 206–207. And, of course, it is the only agency of its kind run by a single Director.

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Presidency, that structure scrupulously avoids concentrating power in the hands of any single individual.

“The Framers recognized that, in the long term, structural protections against abuse of power were critical to preserving liberty.” *Bowsher*, 478 U. S., at 730. Their solution to governmental power and its perils was simple: divide it. To prevent the “gradual concentration” of power in the same hands, they enabled “[a]mbition . . . to counteract ambition” at every turn. The Federalist No. 51, p. 349 (J. Cooke ed. 1961) (J. Madison). At the highest level, they “split the atom of sovereignty” itself into one Federal Government and the States. *Gamble v. United States*, 587 U. S. 678, 688 (2019) (internal quotation marks omitted). They then divided the “powers of the new Federal Government into three defined categories, Legislative, Executive, and Judicial.” *Chadha*, 462 U. S., at 951.

They did not stop there. Most prominently, the Framers bifurcated the federal legislative power into two Chambers: the House of Representatives and the Senate, each composed of multiple Members and Senators. Art. I, §§2, 3.

The Executive Branch is a stark departure from all this division. The Framers viewed the legislative power as a special threat to individual liberty, so they divided that power to ensure that “differences of opinion” and the “jar-rings of parties” would “promote deliberation and circumspection” and “check excesses in the majority.” See The Federalist No. 70, at 475 (A. Hamilton); see also *id.*, No. 51, at 350. By contrast, the Framers thought it necessary to secure the authority of the Executive so that he could carry out his unique responsibilities. See *id.*, No. 70, at 475–478. As Madison put it, while “the weight of the legislative authority requires that it should be . . . divided, the weakness of the executive may require, on the other hand, that it should be fortified.” *Id.*, No. 51, at 350.

The Framers deemed an energetic executive essential to “the protection of the community against foreign attacks,” “the steady administration of the laws,” “the protection of

property,” and “the security of liberty.” *Id.*, No. 70, at 471. Accordingly, they chose not to bog the Executive down with the “habitual feebleness and dilatoriness” that comes with a “diversity of views and opinions.” *Id.*, at 476. Instead, they gave the Executive the “[d]ecision, activity, secrecy, and dispatch” that “characterise the proceedings of one man.” *Id.*, at 472.

To justify and check *that* authority—unique in our constitutional structure—the Framers made the President the most democratic and politically accountable official in Government. Only the President (along with the Vice President) is elected by the entire Nation. And the President’s political accountability is enhanced by the solitary nature of the Executive Branch, which provides “a single object for the jealousy and watchfulness of the people.” *Id.*, at 479. The President “cannot delegate ultimate responsibility or the active obligation to supervise that goes with it,” because Article II “makes a single President responsible for the actions of the Executive Branch.” *Free Enterprise Fund*, 561 U. S., at 496–497 (quoting *Clinton v. Jones*, 520 U. S. 681, 712–713 (1997) (BREYER, J., concurring in judgment)).

The resulting constitutional strategy is straightforward: divide power everywhere except for the Presidency, and render the President directly accountable to the people through regular elections. In that scheme, individual executive officials will still wield significant authority, but that authority remains subject to the ongoing supervision and control of the elected President. Through the President’s oversight, “the chain of dependence [is] preserved,” so that “the lowest officers, the middle grade, and the highest” all “depend, as they ought, on the President, and the President on the community.” 1 *Annals of Cong.* 499 (J. Madison).

The CFPB’s single-Director structure contravenes this carefully calibrated system by vesting significant governmental power in the hands of a single individual accountable to no one. The Director is neither elected by the people nor

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meaningfully controlled (through the threat of removal) by someone who is. The Director does not even depend on Congress for annual appropriations. See *The Federalist* No. 58, at 394 (J. Madison) (describing the “power over the purse” as the “most compleat and effectual weapon” in representing the interests of the people). Yet the Director may *unilaterally*, without meaningful supervision, issue final regulations, oversee adjudications, set enforcement priorities, initiate prosecutions, and determine what penalties to impose on private parties. With no colleagues to persuade, and no boss or electorate looking over her shoulder, the Director may dictate and enforce policy for a vital segment of the economy affecting millions of Americans.

The CFPB Director’s insulation from removal by an accountable President is enough to render the agency’s structure unconstitutional. But several other features of the CFPB combine to make the Director’s removal protection even more problematic. In addition to lacking the most direct method of Presidential control—removal at will—the agency’s unique structure also forecloses certain indirect methods of Presidential control.

Because the CFPB is headed by a single Director with a five-year term, some Presidents may not have any opportunity to shape its leadership and thereby influence its activities. A President elected in 2020 would likely not appoint a CFPB Director until 2023, and a President elected in 2028 may *never* appoint one. That means an unlucky President might get elected on a consumer-protection platform and enter office only to find herself saddled with a holdover Director from a competing political party who is dead set *against* that agenda. To make matters worse, the agency’s single-Director structure means the President will not have the opportunity to appoint any other leaders—such as a chair or fellow members of a Commission or Board—who can serve as a check on the Director’s authority and help bring the agency in line with the President’s preferred policies.

The CFPB's receipt of funds outside the appropriations process further aggravates the agency's threat to Presidential control. The President normally has the opportunity to recommend or veto spending bills that affect the operation of administrative agencies. See Art. I, § 7, cl. 2; Art. II, § 3. And, for the past century, the President has annually submitted a proposed budget to Congress for approval. See Budget and Accounting Act, 1921, ch. 18, § 201, 42 Stat. 20. Presidents frequently use these budgetary tools "to influence the policies of independent agencies." *PHH*, 881 F. 3d, at 147 (Henderson, J., dissenting) (citing Pasachoff, *The President's Budget as a Source of Agency Policy Control*, 125 *Yale L. J.* 2182, 2191, 2203–2204 (2016)). But no similar opportunity exists for the President to influence the CFPB Director. Instead, the Director receives over \$500 million per year to fund the agency's chosen priorities. And the Director receives that money from the Federal Reserve, which is itself funded outside of the annual appropriations process. This financial freedom makes it even more likely that the agency will "slip from the Executive's control, and thus from that of the people." *Free Enterprise Fund*, 561 U. S., at 499.⁹

3

Amicus raises three principal arguments in the agency's defense. At the outset, *amicus* questions the textual basis

⁹ *Amicus* and the dissent try to diminish the CFPB's insulation from Presidential control by observing that the CFPB's final rules can be set aside by a super majority of the Financial Stability and Oversight Council (FSOC). See Brief for Court-Appointed *Amicus Curiae* 40; *post*, at 292, n. 13, 295. But the FSOC's veto power is statutorily reserved for extreme situations, when two-thirds of the Council concludes that a CFPB regulation would "put the safety and soundness of the United States banking system or the stability of the financial system of the United States at risk." 12 U.S.C. §§ 5513(a), (c)(3). That narrow escape hatch has no impact on the CFPB's enforcement or adjudicatory authority and has never been used in the ten years since the agency's creation. It certainly does not render the CFPB's independent, single-Director structure constitutional.

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for the removal power and highlights statements from Madison, Hamilton, and Chief Justice Marshall expressing “heterodox” views on the subject. Brief for Court-Appointed *Amicus Curiae* 4–5, 28–29. But those concerns are misplaced. It is true that “there is no ‘removal clause’ in the Constitution,” *id.*, at 1, but neither is there a “separation of powers clause” or a “federalism clause.” These foundational doctrines are instead evident from the Constitution’s vesting of certain powers in certain bodies. As we have explained many times before, the President’s removal power stems from Article II’s vesting of the “executive Power” in the President. *Free Enterprise Fund*, 561 U. S., at 483 (quoting Art. II, § 1, cl. 1). As for the opinions of Madison, Hamilton, and Chief Justice Marshall, we have already considered the statements cited by *amicus* and discounted them in light of their context (Madison), the fact they reflect initial impressions later abandoned by the speaker (Hamilton), or their subsequent rejection as ill-considered dicta (Chief Justice Marshall). See *Free Enterprise Fund*, 561 U. S., at 500, n. 6 (Madison); *Myers*, 272 U. S., at 136–139, 142–144 (Hamilton and Chief Justice Marshall).¹⁰

¹⁰ The dissent likewise points to Madison’s statement in The Federalist No. 39 that the “tenure” of “ministerial offices generally will be a subject of legal regulation.” *Post*, at 270 (quoting The Federalist No. 39, p. 253 (J. Cooke ed. 1961)). But whatever Madison may have meant by that statement, he later led the charge in contending, on the floor of the First Congress, that “inasmuch as the power of removal is of an Executive nature . . . it is beyond the reach of the Legislative body.” 1 Annals of Cong. 464 (1789); see also *id.*, at 462–464, 495–496. Like the dissent in *Free Enterprise Fund*, the dissent goes on to “attribute[] to Madison a belief that . . . the Comptroller[] could be made independent of the President. But Madison’s actual proposal, consistent with his view of the Constitution, was that the Comptroller hold office for a term of ‘years, unless sooner removed by the President’; he would thus be ‘dependent upon the President, because he can be removed by him,’ and also ‘dependent upon the Senate, because they must consent to his [reappointment] for every term of years.’ ” *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U. S. 477, 499, 500, n. 6 (2010) (quoting 1

Next, *amicus* offers a grand theory of our removal precedents that, if accepted, could leave room for an agency like the CFPB—and many other innovative intrusions on Article II. According to *amicus*, *Humphrey's Executor* and *Morrison* establish a general rule that Congress may impose “modest” restrictions on the President’s removal power, with only two limited exceptions. Brief for Court-Appointed *Amicus Curiae* 33–37. Congress may not reserve a role for itself in individual removal decisions (as it attempted to do in *Myers* and *Bowsher*). And it may not eliminate the President’s removal power altogether (as it effectively did in *Free Enterprise Fund*). Outside those two situations, *amicus* argues, Congress is generally free to constrain the President’s removal power. See also *post*, at 276–282 (KAGAN, J., concurring in judgment with respect to severability and dissenting in part) (hereinafter dissent) (expressing similar view).

But text, first principles, the First Congress’s decision in 1789, *Myers*, and *Free Enterprise Fund* all establish that the President’s removal power is the rule, not the exception. While we do not revisit *Humphrey's Executor* or any other precedent today, we decline to elevate it into a freestanding invitation for Congress to impose additional restrictions on the President’s removal authority.¹¹

Annals of Cong. 612; citation omitted). See *post*, at 270, n. 4. The dissent further notes that, at the time of the founding, some States placed limitations on their Governors’ removal power. See *post*, at 267. But the Framers hardly viewed State Governors as a reliable guide in fashioning the Federal Executive. Indeed, they expressly rejected the “executive council” structure favored by most States, fearing that subjecting the President to oversight, as the States had, would “distract and . . . enervate the whole system of administration” and inject it with “habitual feebleness and dilatoriness.” The Federalist No. 70, at 473, 476 (A. Hamilton).

¹¹ Building on *amicus*’ proposal, the dissent would endorse whatever “the times demand, so long as the President retains the ability to carry out his constitutional duties.” *Post*, at 264. But that amorphous test

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Finally, *amicus* contends that if we identify a constitutional problem with the CFPB's structure, we should avoid it by broadly construing the statutory grounds for removing the CFPB Director from office. See Brief for Court-Appointed *Amicus Curiae* 50–53; Tr. of Oral Arg. 57–62. The Dodd-Frank Act provides that the Director may be removed for “inefficiency, neglect of duty, or malfeasance in office.” 12 U. S. C. § 5491(c)(3). In *amicus*' view, that language could be interpreted to reserve substantial discretion to the President. Brief for Court-Appointed *Amicus Curiae* 51.

We are not persuaded. For one, *Humphrey's Executor* implicitly rejected an interpretation that would leave the President free to remove an officer based on disagreements about agency policy. See 295 U. S., at 619, 625–626. In addition, while both *amicus* and the House of Representatives invite us to adopt whatever construction would cure the con-

provides no real limiting principle. The “clearest” (and only) “example” the dissent can muster for what may be prohibited is a for-cause removal restriction placed on the President’s “close military or diplomatic advisers.” *Post*, at 276. But that carveout makes no logical or constitutional sense. In the dissent’s view, for-cause removal restrictions are permissible because they guarantee the President “meaningful control” over his subordinates. *Post*, at 288 (internal quotation marks and alterations omitted); see also *post*, at 268, 279–280, 285–286, 295. If that is the theory, then what is the harm in giving the President the same “meaningful control” over his close advisers? The dissent claims to see a constitutional distinction between the President’s “own constitutional duties in foreign relations and war” and his duty to execute laws passed by Congress. *Post*, at 273. But the same Article that establishes the President’s foreign relations and war duties expressly entrusts him to take care that the laws be faithfully executed. And, from the perspective of the governed, it is far from clear that the President’s core and traditional powers present greater cause for concern than peripheral and modern ones. If anything, “[t]he growth of the Executive Branch, which now wields vast power and touches almost every aspect of daily life, *heightens* the concern that it may slip from the Executive’s control, and thus from that of the people.” *Free Enterprise Fund*, 561 U. S., at 499 (emphasis added).

stitutional problem, they have not advanced any workable standard derived from the statutory language. *Amicus* suggests that the proper standard might permit removals based on *general* policy disagreements, but not *specific* ones; the House suggests that the permissible bases for removal might vary depending on the context and the Presidential power involved. See Tr. of Oral Arg. 58–60, 76–77. They do not attempt to root either of those standards in the statutory text. Further, although nearly identical language governs the removal of some two-dozen multimember independent agencies, *amicus* suggests that the standard should vary from agency to agency, morphing as necessary to avoid constitutional doubt. *Id.*, at 55–56. We decline to embrace such an uncertain and elastic approach to the text.

Amicus and the House also fail to engage with the Dodd-Frank Act as a whole, which makes plain that the CFPB is an “independent bureau.” 12 U. S. C. §5491(a); see also 44 U. S. C. §3502(5) (listing the CFPB as an “independent regulatory agency”). Neither *amicus* nor the House explains how the CFPB would be “independent” if its head were required to implement the President’s policies upon pain of removal. See Black’s Law Dictionary 838 (9th ed. 2009) (defining “independent” as “[n]ot subject to the control or influence of another”). The Constitution might of course compel the agency to be dependent on the President notwithstanding Congress’s contrary intent, but that result cannot fairly be inferred from the statute Congress enacted.

Constitutional avoidance is not a license to rewrite Congress’s work to say whatever the Constitution needs it to say in a given situation. Without a proffered interpretation that is rooted in the statutory text and structure, and would avoid the constitutional violation we have identified, we take Congress at its word that it meant to impose a meaningful restriction on the President’s removal authority.